



Maritime Labour Notice (MLN) – 022(a)
Supersedes MLN 022

To: Ship owners, Masters, Operators, Recognised Organisations, and Certifying Authorities

Access to shore-based welfare facilities MLC Title 4.4

This MLN provides guidance on compliance with Gibraltar regulations which give effect to MLC 2006 Title 4.4
Implementation of these guidelines will be taken as evidence of compliance with the Gibraltar regulations.
The guidelines do not preclude an organisation from demonstrating an equivalent or higher standard as an “alternative method” of evidence of compliance.

Associated requirements referred to in this notice:

Maritime Labour Convention 2006

Gibraltar Merchant Shipping (Maritime Labour Convention) Regulations 2013 Reg. 31

Most regulations and notices are available on the Gibraltar Government website www.gibraltarship.com

Latest versions of abovementioned requirements are applicable and must be referred to

Steve Gomez – Chief Surveyor

For & on behalf of the Maritime Administrator

Issued: 06 December 2024

All notices are available via <https://gibraltarship.com/notices/maritime-labour-notices>

1. Due to size of Gibraltar there is only one port and this is regarded as „appropriate“ for the purposes of Title 4.4.
2. There is a dedicated welfare facility within the Port and this is administered by a Welfare Board, which is independent of the Port and the Administration
3. Seafarers visiting Gibraltar have access, if desired, to all public recreational facilities, places of worship, voluntary organisations and shops.
4. Seafarers, should as far as is reasonably practicable, be provided with internet access, with charges, if any, being reasonable in amount.
5. Visiting seafarers to Gibraltar are protected against discrimination by the Human Rights Act 2001 (Article 14) which provides anti-discrimination legislation „...on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status“.
6. Seafarers visiting Gibraltar who are detained should be informed of their right to request that Gibraltar inform the relevant flag state and state of seafarer“s nationality. Consular officers from the seafarer“s state of nationality will be given immediate access and regular visits.
7. Seafarers on Gibraltar vessels should not be prevented from being able to access their consuls if required when in foreign ports.
8. Seafarers on Gibraltar vessels who are detained in a foreign port should have access to consular protection.
9. When advised of the detention of a seafarer in a foreign port whose state of nationality is Gibraltar the Gibraltar Maritime Administration will promptly inform the seafarer“s next of kin.